

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Squad #06	CCRB Case #: 201601547	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 02/21/2016 11:25 AM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 8/21/2017	Precinct: 43		
Date/Time CV Reported Thu, 02/25/2016 9:13 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 02/25/2016 9:13 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Ryan Loomis	11460	949216	SRG 2
2. POM Declan Ludington	14327	953018	SRG 2

Officer(s)	Allegation	Investigator Recommendation
A . POM Ryan Loomis	Discourtesy: PO Ryan Loomis spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Ryan Loomis	Abuse: PO Ryan Loomis frisked § 87(2)(b)	B . Substantiated
C . POM Ryan Loomis	Abuse: PO Ryan Loomis searched the vehicle in which § 87(2)(b) was an occupant.	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On February 25, 2016, § 87(2)(b) filed this complaint with the CCRB online (BR 01).

On February 21, 2016, at approximately 11:25 a.m., § 87(2)(b) was parked in front of § 87(2)(b) in the Bronx when he was approached by two police officers, identified by the investigation as PO Ryan Loomis and PO Declan Ludington of Strategic Response Group 2.

In the course of their interaction, PO Loomis ordered § 87(2)(b) to step out of the vehicle. § 87(2)(b) replied to PO Loomis' command by saying that he felt he was being harassed. PO Loomis replied, "Did I fucking harass you?" (**Allegation A**). § 87(2)(b) also alleged that PO Loomis used the word "fuck" two further times during their interaction, but could not be more specific about the context in which these uses of profanity occurred.

§ 87(2)(b) eventually stepped out of the vehicle. PO Ludington handcuffed § 87(2)(b). PO Loomis acknowledged that he frisked § 87(2)(b) though § 87(2)(b) did not himself allege this (**Allegation B**). PO Loomis also searched § 87(2)(b)'s vehicle (**Allegation C**).

PO Loomis issued § 87(2)(b) a VTL summons for obstructing vehicular traffic (BR 02). § 87(2)(g), § 87(4-b)
§ 87(2)(b)'s brother, § 87(2)(b) provided a cell phone video that he recorded of this incident (BR 03). § 87(2)(g).



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On May 27, 2016, this case was reassigned from Inv. Bennes to the undersigned.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined the option of mediation § 87(2)(b).
- On May 17, 2016, a Notice of Claim request was submitted to the Comptroller's office, the results of which will be added to the case file upon receipt (BR 04).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed the following CCRB complaints (BR 06):
 - § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- PO Loomis has been a member of the service for five years. There is one prior allegation against him (discourtesy) from a case that occurred in 2012, which was closed as unsubstantiated. § 87(2)(g)
[REDACTED]

- PO Ludington has been a member of the service for three years. There are nine prior allegations against him stemming from four cases that occurred between 2013 and the present date, one of which was substantiated:
 - In CCRB case 201310095, an allegation of offensive language: race was substantiated. The Board recommended Instructions, and the NYPD penalty was instructions.

Findings and Recommendations

Potential Issues

- On March 2, 2016, Field Work was performed to § 87(2)(b) to canvass for video footage, which returned negative results (BR 07).

Allegations not pleaded

- § 87(2)(g)

Allegation A – Discourtesy: Police Officer Ryan Loomis spoke discourteously to § 87(2)(b)

It is not disputed that § 87(2)(b) parked in front of a fire hydrant in front of § 87(2)(b) in the Bronx, that he turned off his vehicle, and that he reclined his seat for approximately 45 minutes while waiting for his brother, § 87(2)(b). It is also not disputed that PO Loomis and PO Ludington pulled parallel to § 87(2)(b)'s vehicle in their unmarked police vehicle, and that PO Loomis then exited the vehicle and approached the driver side of § 87(2)(b)'s vehicle while PO Ludington approached the front passenger window. It is undisputed that PO Loomis eventually ordered § 87(2)(b) to step out of the vehicle.

§ 87(2)(g) (BR 08) said that after PO Loomis told him to exit the vehicle, § 87(2)(b) asked why the officer would need him to step out of the vehicle, told PO Loomis that if he was going to issue him a ticket he should just go ahead and do so, and that he felt like he was being harassed. PO Loomis allegedly replied, “Did I fucking harass you?” § 87(2)(b) thought PO Loomis also said “fuck” two more times during this exchange, but could not specify in what context.

§ 87(2)(b) believed that by the point at which PO Loomis used this profanity towards him, his brother, § 87(2)(b) had arrived at the scene. When contacted by phone, § 87(2)(b) (BR 09) said that by the time he arrived § 87(2)(b) had already exited his vehicle and was handcuffed at its rear. § 87(2)(b) never heard PO Loomis say to § 87(2)(b) “Did I fucking harass you?” § 87(2)(b) never heard any officer use any profanity whatsoever towards § 87(2)(b).

PO Loomis (BR 10) denied saying, “Did I fucking harass you?” to § 87(2)(b). PO Loomis did not recall using any profanity towards § 87(2)(b) during this incident.

PO Ludington (BR 11) denied hearing PO Loomis say to § 87(2)(b) “Did I fucking harass you?” PO Ludington denied hearing PO Loomis use any profanity towards § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: Police Officer Ryan Loomis frisked § 87(2)(b)

§ 87(2)(b) did not allege a frisk.

PO Loomis (BR 10) acknowledged that he frisked § 87(2)(b). PO Loomis said that while he observed § 87(2)(b) to be parked so that he was blocking a fire hydrant, he initially approached the vehicle only to ensure that § 87(2)(b) was all right, and had no intent to issue him a summons. PO Loomis approached the driver side window and knocked upon it. § 87(2)(b) sat up and rolled down his window. PO Loomis asked § 87(2)(b) if he was all right and what he was doing at the location. § 87(2)(b) appeared to be agitated and nervous in that he spoke to PO Loomis in a tense tone and appeared to be shaking. § 87(2)(b)'s speech was also slurred. PO Loomis thought that § 87(2)(b) might have been intoxicated and “sleeping something off” in his vehicle. § 87(2)(b) held both of his hands in his lap in closed fists. PO Loomis could not tell if § 87(2)(b) was concealing anything in his hands, and therefore ordered him to show his hands. § 87(2)(b) initially hesitated, but eventually displayed his hands to PO Loomis so that PO Loomis could see there was nothing in them.

PO Loomis ordered § 87(2)(b) to exit his vehicle. § 87(2)(b) asked why he needed to step out. PO Loomis told § 87(2)(b) “We’re going to have this conversation outside of the car because you’re not being compliant. You’re making me nervous, I don’t know why you’re here, I don’t know who you are...” PO Loomis then again told § 87(2)(b) to exit his vehicle where there are “less [sic] things that can harm me.”

PO Loomis frisked § 87(2)(b)'s jacket pockets and waistband once § 87(2)(b) stepped out of his vehicle. PO Loomis did not remember observing any bulges in § 87(2)(b)'s clothing prior to conducting the frisk. PO Loomis thought § 87(2)(b) might have been armed based upon the high-crime nature of the location in which § 87(2)(b) was stopped and his nervous behavior, which led PO Loomis to suspect that § 87(2)(b) might be “hiding something.” PO Loomis explained that while he is not personally very familiar with the location where § 87(2)(b) was stopped, PO Ludington had told him earlier that the area is known for a high incidence of drug use. PO Loomis otherwise had no reason to suspect that § 87(2)(b) was armed. Once § 87(2)(b) was frisked, PO Loomis handcuffed him and brought him to the rear of the vehicle.

PO Ludington (BR 11) confirmed that he saw PO Loomis frisk § 87(2)(b)'s jacket pockets and “pant leg area.” PO Ludington did not know why PO Loomis frisked § 87(2)(b) and did not know whether or not PO Loomis suspected that § 87(2)(b) was armed. PO Ludington did not interact with § 87(2)(b) enough to form a suspicion himself that § 87(2)(b) was armed.

A frisk is permissible only if an officer possesses a particularized reasonable suspicion that a suspect is armed and dangerous. People v. Gonzalez, 295 A.D.2d 183 (2002) (BR 12)

Behavior that is susceptible to an innocuous interpretation, even in a high crime area, is not sufficient to establish reasonable suspicion. People v. Hampton, 200 A.D.2d 466 (1994) (BR 13)

§ 87(2)(g)

As such, it is recommended that **Allegation B** be closed as **substantiated**.

Allegation C – Abuse of Authority: Police Officer Ryan Loomis searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Loomis handcuffed § 87(2)(b) and moved him to the rear of his vehicle, and that PO Loomis then entered § 87(2)(b)'s vehicle through its driver side door.

§ 87(2)(b) (BR 08) said that PO Loomis entered his vehicle and began searching its front two seats. PO Loomis found an old summons that § 87(2)(b) had been issued and which § 87(2)(b) had stored in the cup holder of his center console. § 87(2)(b) was positioned at the rear of his vehicle facing away from it, and so could not see if PO Loomis searched any other areas of the vehicle. § 87(2)(b) did not know how long the search of his vehicle lasted. § 87(2)(b) did not consent to a search of his vehicle, nor did PO Loomis request his consent. Only after the vehicle search was complete did PO Loomis request his identification. § 87(2)(b) refused to respond to PO Loomis' request.

After PO Loomis finished his search, § 87(2)(b)'s second brother, § 87(2)(b) and his father, § 87(2)(b) – whose contact information § 87(2)(b) refused to supply to the investigation – arrived at the scene. § 87(2)(b) went into § 87(2)(b)'s vehicle and searched the glove compartment for § 87(2)(b)'s identification unsuccessfully. § 87(2)(b) ultimately gave PO Loomis § 87(2)(b)'s name, address, and date of birth so that a summons could be issued to him.

§ 87(2)(b) (BR 09) said that when he arrived to the scene, § 87(2)(b) told him to get his identification from his vehicle. § 87(2)(b) searched the front seat of his brother's vehicle, but did not find the identification. During this time, § 87(2)(b) and § 87(2)(b) arrived to the scene. PO Loomis then leaned in through the open driver's side door of § 87(2)(b)'s vehicle for less than five minutes. § 87(2)(b) did not see where PO Loomis searched inside the vehicle more specifically.

PO Loomis (BR 10) said that once § 87(2)(b) was removed to the rear of the vehicle, he asked § 87(2)(b) for his driver's license. § 87(2)(b) either refused to provide it or said he did not have one, PO Loomis could not remember which. PO Loomis estimated that he asked § 87(2)(b) for his license approximately five times. PO Loomis leaned into § 87(2)(b)'s vehicle through the driver side and looked through a wallet that was on the center console by the gear shift between the driver's seat and the passenger's seat. PO Loomis did not remember searching any other areas of the vehicle. PO Loomis also added that he searched the vehicle in part because § 87(2)(b) was behaving nervously, which led him to believe that § 87(2)(b) might be hiding something.

PO Ludington (BR 11) denied that he or PO Loomis ever entered § 87(2)(b)'s vehicle, whether to search for § 87(2)(b)'s identification or otherwise. Neither he nor PO Loomis ever searched § 87(2)(b)'s personal effects for § 87(2)(b)'s identification. Although § 87(2)(b) refused to provide his identification, the officers were satisfied with the information provided by § 87(2)(b).

An officer must have probable cause to believe that a vehicle contains evidence of a crime, contraband, or a weapon in order to conduct a warrantless search of the vehicle. As an exception, officers may conduct a limited search of a vehicle to retrieve a weapon if they reasonably believe that the weapon poses an immediate threat to their safety. Once the occupants have been removed from the vehicle and no longer have access to any weapon inside the vehicle, this exception no longer applies, as any immediate threat to safety has been eliminated. People v. Mouzon, 31 Misc. 3d 1242 (2011) (BR 14)

Once the police lawfully stop a motorist for a traffic infraction, they may require that he produce a license, registration, and proof of insurance. A limited search of a vehicle to obtain a motorist's license, insurance, and registration is permissible only in the event that less-intrusive alternatives for verifying ownership cannot be conducted. People v. Pryor, 26 Misc. 3d 997 (2009) (BR 15) In Pryor, an officer stopped a motorist for a traffic infraction. The motorist could not produce registration or proof of insurance after being given a reasonable opportunity to provide them, and the officer ordered him to exit the vehicle due to his agitated behavior. Because the motorist's agitated behavior presented a safety concern, the officers were justified in not allowing the motorist to return to the vehicle to search for the documents himself. The officers therefore searched the area of the vehicle where the motorist specified the vehicle's documents could be found.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b) [Redacted text block]

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date